

TENTATIVE RULING

Case: **TD Bank, N.A. v. Kearney**
 Case No. CV-2025-1023

Hearing Date: **January 21, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff TD Bank, N.A.'s unopposed motion for order to have admissions deemed admitted is **GRANTED**. (Code Civ. Proc., § 2033.280; Chen decl., ¶¶ 1-4, Exhibit 1.)

Plaintiff's request for sanctions is **GRANTED**, in the amount of \$510.00, against defendant Timothy Joseph Kearney. (Code Civ. Proc., § 2033.280, subd. (c); Chen decl., ¶ 7.) The Court does not award sanctions for time not yet incurred. Defendant shall pay the sanction by **February 23, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.